

25STCV35786 25STCV35786

County: los-angeles

Division: Civil Law and Motion

Department: 734

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Case Number: 25STCV35786 Hearing Date: August 18, 2026 Dept: 734

Plaintiff

alleges that after she performed her job duties of reporting unsafe conditions at the Palisades Charter High School, she suffered retaliation which led to her suffering health problems from stress and eventual termination from employment.

Defendant

Los Angeles Unified School District demurs to the Third Amended Complaint.

TENTATIVE RULING

Defendant

Los Angeles Unified School District's demurrer to the Third Amended Complaint is **OVERRULED** as to the ninth cause of action and **SUSTAINED** without leave to amend as to the tenth cause of action.

Defendant is to answer the remaining allegations of the Third Amended Complaint within 10 days.

ANALYSIS

Demurrer

Meet and Confer

The

Declaration of Samire Elhouty reflects that Defendant's counsel satisfied the meet and confer requirement set forth in Code Civ. Proc. § 430.41.

Request For Judicial Notice

Plaintiff

requests that the Court take judicial notice of the following:

1. May 6, 2026 Ruling on LAUSD's Demurrer to the Second Amended Complaint
RJN Appendix pp. 2-12.

2. LAUSD's Demurrer to the Third Amended Complaint RJN Appendix pp.
13-73.

3. Vernon
v. State of California (2004) 116 Cal-App.4th 114 RJN Appendix pp. 74-91

4. Government
Code section 815.6 RJN Appendix pp. 92-93

5. Government Code section 12925 RJN Appendix pp. 94-95

6. Government
Code section 12926 RJN Appendix pp. 96-103

7. Government
Code section 12940 RJN Appendix pp. 104-111

8. Education
Code section 234.1, subdivisions (b) and (f) RJN Appendix pp. 112-115

9. Education
Code section 56046 RJN Appendix pp. 116-118

10. Government Code section 815.2 RJN Appendix pp. 119-120

11. Government Code section 815 RJN Appendix pp. 121-122

12. Education Code section 47604.32 RJN Appendix pp. 123-125

13. Education Code section 47641 RJN Appendix pp. 126-128

14. Education Code section 47646 RJN Appendix pp. 129-131

15. Education Code section 33315 RJN Appendix pp. 132-135
16. California Code of Regulations, title 5, section 4631 RJN Appendix pp. 136-138
17. California Code of Regulations, title 5, section 4630 RJN Appendix pp. 139-141
18. California Code of Regulations, title 5, section 4621 RJN Appendix pp. 142-144
19. Education Code section 47640 RJN Appendix pp. 145-146
20. Education Code section 47613 RJN Appendix pp. 147-149
21. Education Code section 47604, subdivision (d) RJN Appendix pp. 150-152
22. Education Code section 56836.23 RJN Appendix pp. 153-155
23. Education Code section 56205 RJN Appendix pp. 156-161
24. Education Code section 56195 RJN Appendix pp. 162-163
25. California Code of Regulations, title 5, section 4620 RJN Appendix pp. 164-165
26. California Code of Regulations, title 5, section 4650 RJN Appendix pp. 166-168
27. California Code of Regulations, title 5, section 4640 RJN Appendix pp. 169-170
28. Evidence Code section 452 RJN Appendix pp. 171-172
29. Evidence Code section 453 RJN Appendix pp. 173-174

Requests

Nos. 1 and 2 are GRANTED per Evid. Code § 452(d)(court records). Requests Nos. 3

– 29 are GRANTED per Evid. Code § 452(a)(decisional and statutory law).

The

Court notes that, in granting Plaintiff's requests for judicial notice, the Court is not doing so on the basis that such matters are relevant to this demurrer.

Discussion

As

Defendant points out in the Reply, Plaintiff filed a separate document entitled Factual Exhibit Index which contains evidence extrinsic to the 3AC. As such, the Court will not consider any such evidence.

"A demurrer tests the pleadings alone

and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed (Code Civ. Proc., §§ 430.30, 430.70). The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action [citation]." (Citation omitted.)

(Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Defendant

Los Angeles Unified School District demurs to the Third Amended Complaint as follows:

1. Ninth

Cause of Action (Aiding and Abetting Discrimination, Retaliation, and Failure to Accommodate—Gov. Code § 12940(i).)

Defendant

is barred by Code Civ. Proc. § 430.41(b) from demurring to this cause of action.

A party demurring

to a pleading that has been amended after a demurrer to an earlier version of the pleading was sustained shall not demur to any portion of the amended complaint, cross-complaint, or answer on grounds that could have been raised by demurrer to the earlier version of the complaint, cross-complaint, or answer.

Cal Code Civ Proc § 430.41(b)[bold emphasis added].

In

the Reply, Defendant argues that Code Civ. Proc. § 430.41(b) only restricts a successive demurrer following an order sustaining a demurrer, not an order overruling a demurrer. However, the Court sustained Defendant's demurrer to the tenth cause of action in the Second Amended Complaint with leave to amend, and Plaintiff accordingly filed the Third Amended Complaint. This meets the conditions set forth in Code Civ. Proc. § 430.41(b). As such, Defendant is barred from demurring to "any portion of the amended complaint," which includes the ninth cause of action, on grounds that could have been raised by demurrer to the Second Amended Complaint. The purpose of section 430.41(b) is to avoid the waste of court resources, litigation delays, and increased costs that result from protracted rounds of demurrers. Preventing a demurring party from asserting defects not previously raised is in keeping with that theme of judicial economy.

Defendant

argues that a public entity is not a "person" subject to aiding and abetting liability under Government Code Section 12940(i) and mere regulatory inaction and omission do not constitute "substantial assistance" or "encouragement" under common law aiding and abetting standards. These arguments could have been presented as to the ninth cause of action asserted in the Second Amended Complaint, and thus are foreclosed by Code Civ. Proc. § 430.41(b).

Defendant

also argues that the express statutory liability shield of Education Code section 47604(d) extinguishes claims arising from charter personnel omissions. As this Court already ruled, for purposes of Education Code § 47604(d), whether or not the District has complied with the requirements of these provisions are matters outside the scope of this demurrer.

Education

Code § 47604(d) states:

(d) A chartering

authority that grants a charter to a charter school to be operated as or by a nonprofit public benefit corporation is not liable for the debts or obligations of the charter school or for claims arising from the performance of acts, errors, or omissions by the charter school if the chartering authority has complied with all oversight responsibilities required by law, including, but not limited to, those required by Section 47604.32 and subdivision (m) of Section 47605.

(Ed. Code § 47604(d)[bold emphasis added].)

Education

Code §§ 47604.3 - § 47605 are titled:

§ 47604.32.

Additional duties of chartering authority

§ 47604.33.

Preparation and submission of reports by charter schools; Assessment of financial condition by chartering authority; Funding

§ 47604.4.

Monitoring and investigating charter school; Notification of location of schools

§ 47604.5.

Action against financial or other mismanagement

Needless to

say, whether or not the District has complied with the requirements of these provisions are matters outside the scope of this demurrer. On the other side of the coin, by setting forth the conditions under which a chartering authority is not vicariously liable for the performance of acts, errors, or omissions by the charter school, Education Code § 47605(d) implicitly imposes vicariously liability when those conditions are not met.

Defendant

argues that *Knapp v. Palisades Charter High School* (2007) 146 Cal.App.4th 708, 716-717 confirmed that Ed. Code § 47604 is a complete defense meant to insulate authorizing school districts from the operational and personnel liabilities of independent charter schools. However, the pages cited by Defendant dealt with whether claims against an incorporated charter school must satisfy the Tort Claims Act.

As such, Defendant's

reliance upon Education Code § 47604(d) is not persuasive.

The

demurrer to the ninth cause of action is OVERRULED.

10. Tenth Cause of Action (Breach of Mandatory Duties—Gov. Code

§ 815.6).

The

3AC alleges at ¶ 136 as follows:

Plaintiff alleges

that Defendant Los Angeles Unified School District (“LAUSD”), as a local educational agency and charter-authorizing public entity, was subject to mandatory duties imposed by California statutes and regulations requiring action upon receipt of notice, including:

¿ Educ. Code § 56046, which prohibits retaliation against employees or other individuals who assist, advocate, report, or raise concerns regarding the identification, assessment, placement, services, implementation of individualized education programs (“IEPs”), or provision of special education services and protections for pupils with disabilities;

¿ Educ. Code § 234.1(f), which requires local educational agencies to ensure that complainants are protected from retaliation after reporting discrimination, harassment, intimidation, bullying, or related violations governed by California’s Uniform Complaint Procedures;

¿ Educ. Code § 234.1(b), which requires local educational agencies to adopt and undertake complaint investigation and resolution procedures after receiving notice of qualifying complaints;

¿ Cal. Code Regs., tit. 5, § 4650(a), which identifies circumstances warranting direct state intervention where a local educational agency fails to comply with complaint-investigation and resolution procedures required under California’s Uniform Complaint Procedures; and

¿ Cal. Code Regs., tit. 5, §§ 4621, 4630, and 4631, which require local educational agencies to maintain uniform complaint procedures, receive and investigate qualifying complaints, make factual findings, and issue written determinations within prescribed timelines.

(3AC, ¶ 136.)

Government Code section 815.6 (hereafter section 815.6), unchanged since its enactment in 1963, provides: “Where a public entity is under a mandatory

duty imposed by an enactment that is designed to protect against the risk of a particular kind of injury, the public entity is liable for an injury of that kind proximately caused by its failure to discharge the duty unless the public entity establishes that it exercised reasonable diligence to discharge the duty.”

First and foremost, application

of section 815.6 requires that the enactment at issue be obligatory, rather than merely discretionary or permissive, in its directions to the public entity; it must require, rather than merely authorize or permit, that a particular action be taken or not taken. (Citation omitted.) It is not enough, moreover, that the public entity or officer have been under an obligation to perform a function if the function itself involves the exercise of discretion. (Citation omitted.)

[*499] Whether an enactment

creates a mandatory duty is a question of law: “Whether a particular statute is intended to impose a mandatory duty, rather than a mere obligation to perform a discretionary function, is a question of statutory interpretation for the courts.” (Citation omitted.) The enactment’s language “is, of course, a most important guide in determining legislative intent, [but] there are unquestionably instances in which other factors will indicate that apparent obligatory language was not intended to foreclose a governmental entity’s or officer’s exercise of discretion.” (Citation omitted.) Second, but equally important, section 815.6 requires that the mandatory duty be “designed” to protect against the particular kind of injury the plaintiff suffered. The plaintiff must show the injury is “ ‘one of the consequences which the [enacting body] sought to prevent through imposing the alleged mandatory duty.’ ” (Citation omitted.) Our inquiry in this regard goes to the legislative purpose of imposing the duty. That the enactment “confers some benefit” on the class to which plaintiff belongs is not enough; if the benefit is “incidental” to the enactment’s protective purpose, the enactment cannot serve as a predicate for liability under section 815.6. (Citation omitted.)

(Haggis v. City of Los Angeles

(2000) 22 Cal.4th 490, 498-99 [bold emphasis added].)

Defendant

argues that the cited Education Code Sections and Title 5 Regulations were enacted to protect students, not to prevent adult employment terminations. Under this lens, the Court will address each of the statutes cited by Plaintiff at ¶ 136.

¿ Educ. Code § 56046:

(a) An employee

of a local educational agency shall not directly or indirectly use or attempt to use the official authority or influence of the employee for the purpose of intimidating, threatening, coercing, or attempting to intimidate, threaten, or coerce, any person, including, but not limited to, a teacher, a provider of designated instruction and services, a paraprofessional, an instructional aide, a behavioral aide, a health aide, other educators or staff of the local educational agency, a private individual or entity under contract with the local educational agency, or a subordinate of the employee, for the purpose of interfering with the action of that person at any time, to assist a parent or guardian of a pupil with exceptional needs to obtain services or accommodations for that pupil.

(b) If a person

described in subdivision (a), believes an employee or agent of a local educational agency is in violation of subdivision (a) because of using or attempting to use official authority or influence, that person may file a complaint under the Uniform Complaint Procedures as set forth in Title 5 of the California Code of Regulations. If a person files a complaint pursuant to this subdivision, the state shall intervene directly and the conditions for intervention in Section 4650 of Title 5 of the California Code of Regulations are not applicable.

(c) This section

does not limit or alter any right a person described in subdivision (a) may have to file a complaint pursuant to either a governing board-adopted grievance process or a collectively bargained grievance process.

(d) This section

does not do any of the following:

(1) Limit

or alter the right or duty of a public school official to direct or discipline an employee or contractor.

(2) Prevent a

local educational agency from enforcing a law or regulation regarding conflicts of interest, incompatible activities, or the confidentiality of pupil records.

(e)

(1) For purposes

of this section, “services or accommodations” includes information that would assist a parent or guardian to obtain a free appropriate public education for his or her child as guaranteed by the federal Individuals with Disabilities Education Act (20 U.S.C. Sec. 1400 et seq.), or other services or accommodations guaranteed under Section 504 of the federal Rehabilitation Act of 1973 (29 U.S.C. Sec. 794) and the federal Americans with Disabilities Act of 1990 (42 U.S.C. Sec. 12101 et seq.), as well as state laws regarding individuals with exceptional needs.

(2) For purposes

of this section, “use of official authority or influence” includes promising to confer or conferring any benefit, affecting or threatening to affect any reprisal, or taking, directing others to take, recommending, processing, or approving any personnel action, including, but not limited to, appointment, promotion, transfer, assignment, performance evaluation, suspension, or other disciplinary action. “Use of official authority or influence” does not include good faith advocacy by an employee of a public school agency, to any person including another agency employee or contractor, regarding the services, if any, to be provided to a pupil under the laws referred to in paragraph (1).

(f) This section

does not diminish the rights, privileges, or remedies of a public school employee under any other federal or state law or under an employment contract or collective bargaining agreement.

(g) A school

employee’s or contractor’s assistance offered to a parent or guardian of a pupil with exceptional needs to obtain services or accommodations for that pupil shall not interfere with the school employee’s or contractor’s regular duties for the local educational agency.

(Ed. Code § 56046 [bold emphasis added].)

Here, Plaintiff

does not identify a specific pupil with exceptional needs as to whom she attempted to assist that pupil’s parent or guardian to obtain services of accommodations for that pupil. Education Code § 56046 does not impose a mandatory duty that LAUSD breached as to Plaintiff.

With

regard to Education Code sections 231.4, subdivisions (b) and (f), Plaintiff fares no better. These provisions of the Education Code are part of the "Safe Place to Learn Act," which was enacted as a student protection scheme. The Legislature's findings with regard to the Safe Place to Learn Act begin with the statement "All pupils in public primary, elementary, middle, junior high, and senior high schools have the inalienable right to attend school at school campuses that are safe, secure, and peaceful." (2007 Cal. Legis. Serv. Ch. 566 (A.B. 394) (WEST).) Notably, Education Code § 234 clarifies the purposes of the Safe Place to Learn Act:

(a) This article shall be known, and may be cited, as the Safe Place to Learn Act.

(b) It is the policy of the State of California to ensure that all local educational agencies continue to work to reduce discrimination, harassment, violence, intimidation, and bullying. It is further the policy of the state to improve pupil safety at schools and the connections between pupils and supportive adults, schools, and communities.

(Ed. Code § 234 [bold emphasis added].)

Education

Code section 234.1(f) requires documentation and retention of "complaints" and their resolution:

The department, pursuant to subdivision (b) of Section 64001, shall monitor adherence to the requirements of Chapter 5.3 (commencing with Section 4900) of Division 1 of Title 5 of the California Code of Regulations and this chapter as part of its regular monitoring and review of local educational agencies, commonly known as the Categorical Program Monitoring process. The department shall assess whether local educational agencies have done all of the following:

...

(f) Maintained

documentation of complaints and their resolution for a minimum of one review cycle.

(Ed. Code § 234.1(f).) The complaints

referenced in section 234.1(f) are defined in section 234.1(b):

(b) Adopted

a process for receiving and investigating complaints of discrimination, harassment, intimidation, and bullying based on any of the actual or perceived characteristics set forth in Section 422.55 of the Penal Code, including immigration status, and Section 220 of this code, and disability, gender, gender identity, gender expression, nationality, race or ethnicity, religion, sexual orientation, or association with a person or group with one or more of these actual or perceived characteristics.

The complaint process shall include, but not be limited to, all of the following:

(1) A requirement

that, if school personnel witness an act of discrimination, harassment, intimidation, or bullying, they shall take immediate steps to intervene when safe to do so.

(2) A timeline

to investigate and resolve complaints of discrimination, harassment, intimidation, or bullying that shall be followed by all schools under the jurisdiction of the school district.

(3) An appeal

process afforded to the complainant in the case of a disagreement with the resolution of a complaint filed pursuant to this section.

(4) All forms

developed pursuant to this process shall be translated pursuant to Section 48985.

(Ed. Code § 234.1(b)[bold emphasis added].)

It

is apparent that Education Code § 234.1 is designed to protect students, not persons in Plaintiff's position as a highly credentialed Special Education Coordinator.

(3AC, ¶ 2.)

Neither

portion of Education Code § 234.1 that Plaintiff relies on can be interpreted as imposing a mandatory duty that LAUSD breached as to Plaintiff.

Next, as to
the California Code of Regulations provisions Plaintiff cites:

¿ Cal. Code Regs., tit. 5, § 4650(a):

(a) The CDE

may at its discretion directly intervene without waiting for an LEA investigation
if one or more of the following situations exist:

(1) The complaint

includes an allegation that an LEA failed to comply with the complaint procedures
required by this chapter and its local rules and regulations, including, but not
limited to, the failure or refusal of the LEA to cooperate with the investigation;

(2) The complainant

requests anonymity because the complainant would be in danger of retaliation and
would suffer immediate and irreparable harm if the complainant filed a complaint
with the LEA (except for complaints identified in section 4630(e), which may be
filed anonymously at the local level);

(3) The complainant

alleges that the LEA failed or refused to implement the final LEA Investigation
Report resulting from its local investigation or local mediation agreement or a
CDE appeal Decision;

(4) The complainant

alleges that through no fault of the complainant, no action has been taken by the
LEA within 60 calendar days of the date the complaint was filed. Prior to direct
intervention, the CDE shall attempt to work with the LEA to allow it to complete
the investigation and issue an LEA Investigation Report; or

(5) The complainant

alleges that the complainant would suffer immediate and irreparable harm as a result
of an application of a district-wide policy that is in conflict with state or federal
law covered by this chapter, and that filing a complaint with the LEA would be futile.

(5 CCR 4650(a)[bold emphasis added].)

This

code section vests the California Department of Education with discretion to intervene.

5 CCR 4650(a)[does
not impose a mandatory duty which LAUSD breached as to Plaintiff.

¿ Cal. Code Regs., tit. 5, §§ 4621, 4630,
and 4631:

(a) Each LEA shall
adopt policies and procedures consistent with sections 4600 through 4694 of this
chapter for the investigation and resolution of complaints. Local policies
shall ensure that complainants are protected from retaliation and that the identity
of a complainant alleging discrimination, harassment, intimidation or bullying remain
confidential as appropriate. School districts, County Offices of Education, and
direct-funded charter schools shall submit their policies and procedures to the
local governing board or authorized designee for adoption.

(b) Each LEA shall
include in its policies and procedures the person(s), employee(s) or agency position(s)
or unit(s) responsible for receiving complaints, investigating complaints
and ensuring LEA compliance. The LEA's policies shall ensure that the person(s),
employee(s), position(s) or unit(s) responsible for compliance and/or investigations
shall be knowledgeable about the laws/programs that he/she is assigned to investigate.

(c) The LEA may
provide a complaint form for persons wishing to file a complaint to fill out and
file. However, a person is not required to use the complaint form furnished by the
LEA in order to file a complaint.

(5 CCR 4621 [bold emphasis added].)

(a) Complaints
shall be filed not later than one year from the date the alleged violation occurred,
except as stated in subdivision (b) below. For complaints relating to Local Control
and Accountability Plans (LCAP), the date of the alleged violation is the date when
the reviewing authority approves the LCAP or annual update that was adopted by the
LEA.

(b) An investigation
of alleged unlawful discrimination, harassment, intimidation or bullying shall

be initiated by filing a complaint not later than six months from the date the alleged discrimination, harassment, intimidation or bullying occurred, or the date the complainant first obtained knowledge of the facts of the alleged discrimination, harassment, intimidation or bullying unless the time for filing is extended by the district or county superintendent or charter school administrator or similarly authorized charter school individual, or that person's designee, upon written request by the complainant setting forth the reasons for the extension. Such extension by the district or county superintendent or charter school administrator or similarly authorized charter school individual, or that person's designee shall be made in writing. The period for filing may be extended by the district or county superintendent or charter school administrator or similarly authorized charter school individual, or that person's designee for good cause for a period not to exceed 90 days following the expiration of the six-month time period. The district or county superintendent or charter school administrator or similarly authorized charter school individual, or that person's designee shall respond immediately upon a receipt of a request for extension.

(c) A complaint

of alleged unlawful discrimination, harassment, intimidation or bullying may be filed by an individual who alleges that that individual has personally suffered unlawful discrimination, harassment, intimidation or bullying, or by one who believes any specific class of individuals has been subjected to discrimination, harassment, intimidation or bullying prohibited by this part, or by a duly authorized representative who alleges that an individual student has been subjected to discrimination, harassment, intimidation, or bullying.

(1) The complaint

shall be filed with the LEA in accordance with the complaint procedures of the LEA.

(2) An investigation

of a discrimination, harassment, intimidation or bullying complaint shall be conducted in a manner that protects confidentiality of the parties and maintains the integrity of the process.

(d) Pupil fee

complaints may be filed with the principal of the school.

(e) Pupil fee

complaints and complaints regarding local control and accountability plans only, may be filed anonymously, that is, without an identifying signature, if the complaint

provides evidence or information leading to evidence to support an allegation of noncompliance with Education Code sections 49010 and 49011 regarding pupil fees or an allegation of noncompliance with Education Code sections 52060 through 52077, including an allegation of a violation of Education Code sections 47606.5 or 47607.3, as referenced in Education Code section 52075, regarding local control and accountability plans.

(5 CCR 4630 [bold emphasis added].)

(a) Upon receipt

of a complaint, the LEA person responsible for the investigation of the complaints or that person's designee shall conduct and complete an investigation of the complaint in accordance with the local procedures adopted pursuant to section 4621 and prepare a written LEA Investigation Report. This 60-day time period may be extended with the written agreement of the complainant.

(b) The investigation

shall include an opportunity for the complainant, or the complainant's representative, or both, to present evidence or information leading to evidence to support the allegations of non-compliance with state and federal laws and/or regulations.

(c) Refusal by

the complainant to provide the investigator with documents or other evidence related to the allegations in the complaint, or to otherwise fail or refuse to cooperate in the investigation or engage in any other obstruction of the investigation, may result in the dismissal of the complaint because of a lack of evidence to support the allegations.

(d) Refusal by

the LEA to provide the investigator with access to records and/or other information related to the allegation in the complaint, or to otherwise fail or refuse to cooperate in the investigation or engage in any other obstruction of the investigation, may result in a finding based on evidence collected that a violation has occurred and may result in the imposition of a remedy in favor of the complainant.

(e) The LEA shall

issue an LEA Investigation Report based on the evidence. The LEA Investigation Report shall be in writing and sent to the complainant within 60 days from receipt of the complaint by the LEA, subject to any extension under subsection (a) above. The LEA Investigation Report shall include:

(1) the findings

of fact based on the evidence gathered;

(2) conclusion

providing a clear determination as to each allegation as to whether the LEA is in compliance with the relevant law; and

(3) if the LEA

finds merit in the complaint, corrective actions including in the case of complaints related to subsections (a)(1)(I), (J), (K) and (L) of Education Code section 33315, or as otherwise required by law, a remedy to all affected pupils, parents, and guardians. With respect to a pupil fees complaint, corrective actions shall include, a remedy that comports with Education Code section 49013(d) and section 4600(t).

(4) notice of

the complainant's right to appeal the LEA Investigation Report to the CDE, except when the LEA has used its local uniform complaint procedures to address a complaint not described in section 4610(b); and

(5) procedures

to be followed for initiating an appeal to the CDE.

(f) Nothing in

this chapter shall prohibit the parties from utilizing alternative methods to resolve the allegations in the complaint, including, but not limited to, local mediation.

(g) Nothing in

this chapter shall prohibit an LEA from resolving complaints prior to the formal filing of a written complaint.

(5 CCR 4631 bold emphasis added].)

" 'Local educational

agency (LEA)' means any public school district and county office of education or charter school, as applicable, unless otherwise stated in law." (5 CCR 4600(p).)

(d) "Complainant"

means any individual, including a person's duly authorized representative or an

interested third party, public agency, or organization who files a written complaint alleging violation of federal or state laws or regulations, including allegations of unlawful discrimination, harassment, intimidation or bullying in programs and activities funded directly by the state or receiving any financial assistance from the state.'

(e) "Complaint"

means a written and signed statement alleging a violation of federal or state laws or regulations, which may include an allegation of unlawful discrimination, harassment, intimidation or bullying. A signature may be handwritten, typed (including in an email) or electronically generated. Complaints may be filed anonymously pursuant to section 4630(e). Notwithstanding section 4600(d), a complaint filed on behalf of an individual student may only be filed by that student or that student's duly authorized representative. If the complainant is unable to put the complaint in writing, due to conditions such as a disability or illiteracy, the local agency shall assist the complainant in the filing of the complaint.

(5 CCR 4600(d) & (e).)

(a) This chapter applies to the filing, investigation and resolution of a complaint regarding an alleged violation by a local agency of federal or state law or regulations governing educational programs and other specified subject matter, as described in subsection (b) below.

(b) The Uniform Complaint Procedures in this chapter shall apply to complaints relating to all of the matters addressed in Education Code section 33315(a)(1) and any other applicable matters identified by the Legislature in the future.

(c) These procedures do not apply to complaints regarding child nutrition programs established pursuant to Education Code sections 49490 to 49590, inclusive.

(1) The federal provisions governing complaints relative to child nutrition programs are 7 Code of Federal Regulations sections 210.19(a)(4), 215.11(e), 220.13(c), 225.11(b), and 250.15(d).

(2) Other provisions governing complaints relative to child nutrition programs are found in sections 15580 through 15584 of this title.

(d) These procedures do not apply to complaints regarding special education programs established pursuant to Education Code sections 56000 to 56865, and 59000 to 59300, inclusive.

(1) The federal provisions governing complaints relative to special education programs are 34 Code of Federal Regulations sections 300.151 through 300.153.

(2) Other provisions governing complaints relative to special education are found in sections 3200 through 3205 of this title.

(e) Nothing in these regulations shall prevent an LEA from using its local uniform complaint procedure to address complaints not described in subsection

(b). LEA Investigation Reports on complaints not described in subsection (b) may not be appealed to the CDE.

(f) These procedures do not apply to complaints regarding instructional materials, emergency or urgent facilities conditions that pose a threat to the health or safety of pupils or staff, and teacher vacancies and misassignments, except as otherwise indicated. Such complaints are addressed in and governed by sections 4680 through 4687. LEA Investigation Reports on facilities complaints may be appealed to the CDE pursuant to section 4687.

(g) These procedures do not apply to complaints regarding state preschool health and safety issues in LEAs exempt from licensing, except as otherwise indicated. Such complaints are addressed in and governed by sections 4690 through 4694. LEA Investigation Reports on state preschool health and safety issues in LEAs exempt from licensing may be appealed to the CDE pursuant to section 4694

(h) The CDE will develop a pamphlet for parents that will explain the Uniform Complaint Procedures in a user-friendly manner and post this pamphlet on the CDE's website.

(5 CCR 4610.)

(a) The Superintendent shall establish and implement a system of complaint processing, known as the Uniform Complaint Procedures, for educational programs specified in paragraph (1). The department shall review the regulations set forth in Chapter 5.1 (commencing with Section 4600) of Division 1 of Title 5 of the California Code of Regulations pertaining to uniform complaint procedures

and, on or before March 31, 2019, shall commence rulemaking proceedings to revise those regulations, as necessary, to conform to all of the following:

(1) The Uniform Complaint Procedures shall apply to all of the following:

(A) Adult education programs established pursuant to Sections 8500 to 8538, inclusive, and Sections 52500 to 52617, inclusive.

(B) Consolidated categorical aid programs as listed in subdivision (a) of Section 64000.

(C) Migrant child education established pursuant to Sections 54440 to 54445, inclusive.

(D) Career technical and technical education and career technical and technical training programs established pursuant to Sections 52300 to 52462, inclusive.

(E) Childcare and development programs established pursuant to Sections 8200 to 8498, inclusive.

(F) The filing of complaints that allege unlawful discrimination, harassment, intimidation, or bullying against any protected group as identified under Sections 200 and 220 and Section 11135 of the Government Code, including any actual or perceived characteristic as set forth in Section 422.55 of the Penal Code, or on the basis of a person's association with a person or group with one or more of these actual or perceived characteristics, in any program or activity conducted by an educational institution, as defined in Section 210.3, that is funded directly by, or that receives or benefits from, any state financial assistance.

(G) Lactation accommodations pursuant to Section 222.

(H) Educational rights of foster youth pursuant to Sections 48853, 48853.5, and 49069.5, and graduation requirements for foster youth, homeless youth, and other youth pursuant to Section 51225.1.

(I) Pupil fees pursuant to Sections 49010 to 49013, inclusive.

(J) Courses of study pursuant to Section 51228.3.

(K) Instructional minutes for physical education pursuant to Section 51223.

(L) Local control and accountability plans pursuant to Section 52075.

(M) Juvenile court schools pursuant to Section 48645.7.

(N) School safety plans pursuant to Section 32289.

(O) Deficiencies related to preschool health and safety issues for a California state preschool program pursuant to Section 8235.5.

(P) School or athletic team names, mascots, or nicknames pursuant to Section 221.3.

(Q) Any other state or federal educational program the Superintendent deems appropriate.

(2) As it pertains to child nutrition programs and established pursuant to Sections 49490 to 49570, inclusive, and special education programs established pursuant to Sections 56000 to 56865, inclusive, and Sections 59000 to 59300, inclusive, the Uniform Complaint Procedures shall expressly reference the federal provisions that govern complaints relative to these programs, as well as any additional applicable rules included within Title 5 of the California Code of Regulations.

(3) The department shall develop a pamphlet for parents that will explain the Uniform Complaint Procedures in a user-friendly manner and post this pamphlet on the department's internet website.

(4) Except for cases of complaints related to paragraph (2), a complainant who appeals a decision of a local educational agency under the Uniform Complaint Procedures set forth in Chapter 5.1 (commencing with Section 4600) of Division 1 of Title 5 of the California Code of Regulations to the department shall receive a written appeal decision within 60 days of the department's receipt of the appeal, unless extended by written agreement with the complainant or the department documents exceptional circumstances and informs the complainant.

(5) Except for cases of complaints related to paragraph (2),

for those complaints that are filed directly with the department under the Uniform Complaint Procedures set forth in Chapter 5.1 (commencing with Section 4600) of Division 1 of Title 5 of the California Code of Regulations and the department determines merit direct intervention, the department shall complete an investigation and provide a written decision to the complainant within 60 days of receipt of the complaint, unless the parties have agreed to extend the timeline or the department documents exceptional circumstances and informs the complainant.

(6) If a local educational agency finds merit in a complaint, or the Superintendent finds merit in an appeal, filed under the Uniform Complaint Procedures set forth in Chapter 5.1 (commencing with Section 4600) of Division 1 of Title 5 of the California Code of Regulations, the local educational agency shall take corrective actions consistent with the requirements of existing law that will provide a remedy to the affected pupil, or, in the case of complaints related to subparagraphs (I), (J), (K), and (L) of paragraph (1), to all affected pupils, parents, and guardians. For corrective actions related to subparagraph (I), remedies shall, where applicable, include reasonable efforts by the public school to ensure full reimbursement.

(7) Information regarding the requirements of this section shall be included in the annual notification distributed to pupils, parents and guardians, employees, and other interested parties pursuant to Section 4622 of Title 5 of the California Code of Regulations.

(b) The department may adopt emergency regulations pursuant to Section 11346.1 of the Government Code to satisfy the requirements of this section. The adoption of emergency regulations shall be deemed an emergency and necessary for the immediate preservation of the public peace, health, safety, or general welfare.

(c) Nothing in this section or those regulations adopted pursuant to this section shall prevent a local educational agency from using its local uniform complaint procedure to address complaints not listed in this section or those regulations.

(d) For purposes of this section, "local educational agency" has the same meaning as in Section 4600 of Title 5 of the California Code of Regulations.

(Ed. Code § 33315.)

There
is no indication that the foregoing statutory scheme was designed to protect against

the kind of injury Plaintiff suffered, i.e., exclusion, being ignored and being subjected to hostility, and termination of employment. (3AC, ¶¶ 38, 44, 45.) Rather, the statutory schemes appears designed to protect affected pupils, parents and guardians. (5 CCR § 4631(e)(3).)

5 CCR §§ 4621, 4630, and 4631 do not impose a mandatory duty which LAUSD breached as to Plaintiff.

For the foregoing reasons, the demurrer to the tenth cause of action is SUSTAINED without leave to amend.

Defendant is to answer the remaining allegations of the Third Amended Complaint within 10 days.